Jayanta Ghosh vs State Of Nct Of Delhi on 2 May, 2025

Author: Anup Jairam Bhambhani

Bench: Anup Jairam Bhambhani

$~1
* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 3739/2024 & CRL.M.(BAIL) 1709/2024
JAYANTA GHOSH .....Petit

Through: Mr
Ad
Mr
an

versus
STATE OF NCT OF DELHI
Through: Mr
St
Bh
Mr
Co
wi
fo

CORAM:
HON'BLE MR. JUSTICE ANUP JAIRAM BHAMBHANI
ORDER

% 02.05.2025 By way of the present petition filed under section 483 of the Bharatiya Nagarik Suraksha Sanhita 2023, the petitioner seeks regular bail in case FIR No. 77/2023 dated 14.10.2023 registered under sections 406/420/467/468/471/120-B/34 of the Indian Penal Code, 1860 („IPC) at P.S.: Economic Offences Wing, Delhi. Consequent upon completion of investigation, offences under sections 411/201 IPC have been added vide chargesheet dated 12.01.2024.

2. Notice on this petition was issued on 16.10.2024. Status Reports dated 07.12.2024 and 22.01.2025 have been filed by the State. Nominal Roll dated 05.12.2024 has been received from the concerned Jail Superintendent.

This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/06/2025 at 16:51:33

3. Written synopses have been filed on behalf of the petitioner and the State.

4. Pursuant to intimation issued vide order dated 16.10.2024, Mr. Satish Aggarwala, learned senior standing counsel has also entered appearance on behalf of the complainant/Deputy Commissioner,

New Customs House, Delhi.

FACTUAL MATRIX

5. Briefly, it is the case of the prosecution that petitioner herein, Jayanta Ghosh, who was formerly engaged as a clearing agent with the Customs Department has defrauded the Government Exchequer to the tune of about Rs. 60 crores since 2018 in connivance and conspiracy with co-accused persons which primarily include one Vijay Singh, a former data entry operator who worked with the Customs Department and one Deepesh Chamoli, who was the Senior Manager at Punjab National Bank, Sansad Marg Branch, New Delhi.

6. The Customs Department manually sanctions the refund of custom duties, interest, etc. on a case-to-case basis and once a refund is sanctioned, the Department generates a forwarding letter, a scroll of refund orders alongwith bank details and a cheque of the amount of refund is issued in the name of Punjab National Bank, Sansad Marg, New Delhi.

7. The alleged modus operandi claimed to be employed by the accused persons involves the forgery of various official documents, including stamps and signatures of customs officials, scrolls, forwarding letters and cheques. These forged documents would in-turn be used to show This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/06/2025 at 16:51:33 bogus entities as beneficiaries eligible for customs duty refund in order to misappropriate funds lying unclaimed with the Customs Department.

8. In the present case, it is alleged by the prosecution that the accused persons have forged the forwarding letter, scroll and cheque dated 12.09.2023 which were issued by the Customs Department for a sum of Rs. 9,878/- in favour of one M/s. RKG Enterprises; but by forging the documents, including the cheque, the accused persons had a sum of Rs. 9,87,85,008/- disbursed against those documents into 03 bank accounts held under names of bogus companies/entities, of which a significant amount i.e.,Rs. 6.33 crores has been traced to the bank accounts of the petitioner.

PETITIONER'S SUBMISSIONS

9. Mr. Siddharth Aggarwal submits that the petitioner is a 47-year-old Cinematographer and Producer, with no criminal antecedents, and is a person with deep roots in society since he resides with his family comprising his wife, a 19-year-old daughter and a 13-year-old son.

10. Learned senior counsel appearing for the petitioner has submitted, that the case against the petitioner is that he, in conspiracy with the co-accused persons, had forged the refund scroll and cheque issued by the Customs Department in order to cheat the department of the sum of about Rs.10 crores.

11. However, Mr. Aggarwal has argued, that no forged material has been recovered from the petitioner; and even the CFSL Report dated 30.01.2024 filed alongwith the supplementary chargesheet does not This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/06/2025 at 16:51:33 express any opinion indicating the petitioner s involvement in the alleged forgery, despite multiple specimen signatures of the petitioner having been sent to them for matching with the signatures/writing on the alleged forged scroll and cheque.

12. It has been argued, that though no recovery of any forged material has been made from the petitioner, the Investigating Officer is attempting to explain the lack of any recovery on the basis of an alleged disclosure statement made by the petitioner, where he is supposed to have said that the incriminating material was thrown into the Yamuna River.

13. Learned senior counsel has pointed-out that it is now the settled position of law, that an arrest made in violation of section 50 of the Code of Criminal Procedure, 1973 read with Article 22(1) of the Constitution of India, namely where the grounds of arrest are not served upon an arrestee in writing, is an unlawful arrest and requires to be set-aside. To this effect, Mr. Aggarwal has placed reliance on the decision of the Supreme Court in Prabir Purkayastha vs. State (NCT of Delhi).1

14. It is submitted that the petitioner s Arrest Memo dated 17.10.2023, a copy of which has been annexed with the petition, clearly shows that no grounds of arrest were served upon him since the arrest memo only contains formal reasons for the petitioner s arrest, which is not adequate compliance with the mandate of Prabir Purkayastha.

(2024) 8 SCC 254 This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/06/2025 at 16:51:33

15. It has further been submitted that the prosecution is placing reliance on the statements of 02 stamp vendors to allege that the petitioner had procured the fake stamps from them; however inexplicably, neither of the said stamp vendors has been cited as a prosecution witnesses in the chargesheet; and only their cyclostyled and identical statements have been relied upon, which cast serious doubt on the veracity of such statements.

16. Learned senior counsel has submitted that insofar as the petitioner is concerned, investigation is complete; chargesheet dated 21.01.2024 has been filed; and though 49 witnesses have been cited by the prosecution, even charges are yet to be framed in the matter. It has been pointed-out that in the meantime, the petitioner, who was arrested on 17.10.2023, has spent about 01 year and 06 months in judicial custody as an undertrial as of date.

17. In addition to the above-mentioned circumstances, learned senior counsel has placed emphasis on the fact that the petitioner is suffering from pulmonary and cardiac ailments, which have worsened during the period of his incarceration, due to the lack of care and medical facilities available in jail. In this regard, Mr. Aggarwal places reliance on Medical Status Report dated 17.11.2024 filed by the Medical Officer-in-Charge, Central Jail-04, Tihar, before the learned trial court, which confirms that position.

18. Furthermore, claiming parity with the other co-accused persons, learned senior counsel has argued, that there are 07 accused persons in the matter and though some accused persons are stated to be absconding, 03 co-accused persons have already been released on This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/06/2025 at 16:51:33 regular bail and 01 co-accused person has been released on interim bail on medical grounds, details whereof are as follows :

	Period of S. No. Accused Status custody	Regular bail granted vide order dated	
	Pooja Ghosh	20.04.2024 by the learned Chief	06 months
1.	Accused No. 2	Metropolitan Magistrate, Patiala House	and 03 days
	Court, New Delhi.		
	Prasenjit	Regular bail granted vide order dated	09 months
2.	Mitra	08.08.2024 by this court in BAIL	and 21 days
	Accused No. 3	APPLN. No. 1722/2024.	
	Regular bail granted vide order dated		
	Deepesh	09.02.2024 by the learned Chief	03 months
3.	Chamoli	Metropolitan Magistrate, Patiala House	and 20 days
	Court, New Delhi.		
4.	Amit Agrawal Accused No. 7	Interim Bail gra 18.11.2024 by th Chief Judicial M House Court, New by this court vi 06.12.2024 made No. 4475/2024, w petitioner was d back to custody 24.01.2025.	

Amit Agrawal has since been granted regular bail by judgment dated 01.05.2025 in Bail Appln. No. 4475/2024 rendered by this Bench.

This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/06/2025 at 16:51:33

19. Lastly, learned senior counsel has submitted that the bank accounts of the petitioner and other co-accused persons have already been frozen and given the nature of the allegations, no purpose would be served by keeping the petitioner in judicial custody any longer.

20. Accordingly, Mr. Aggarwal has argued that the petitioner deserves to be released on regular bail.

STATE'S SUBMISSIONS

21. On the other hand, Mr. Tarang Srivastva, learned APP appearing for the State has opposed grant of regular bail to the petitioner, submitting that the petitioner is guilty of serious economic offences and if one was not to restrict oneself to the present case, the petitioner has been involved in defrauding the Customs Department to the tune of Rs. 60 crores since 2018; and that, out of the cheated amount, about Rs. 6.33 crores have been traced to the bank accounts of the petitioner himself.

22. Learned APP has submitted, that the petitioner s CDRs show that he was in constant communication with all other co-accused persons; and that CCTV footage of the relevant dates i.e., 20.09.2023, 22.09.2023 and 27.09.2023 obtained from the Punjab National Bank, Sansad Marg, New Delhi show the petitioner, Accused No. 4/Vijay Singh and Accused No. 5/Deepesh Chamoli conspiring and preparing the forged scroll, the cheque and the forwarding letter. Furthermore, Mr. Srivastva has submitted that the CCTV footage also shows the petitioner had given an iPhone-13 to Accused No. 5/Deepesh Chamoli in lieu of his co-operation in the offence, which iPhone was also recovered from the said co-accused person and was verified to be This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/06/2025 at 16:51:33 registered in the name of the petitioner s proprietorship firm M/s. J.R. Production House.

23. Additionally, Mr. Srivastva has also argued that the petitioner cannot seek bail on the ground of parity as he is the main conspirator in the matter, while the other co-accused persons only had limited roles, as detailed in the subject FIR. In this regard, learned APP has submitted, that Accused No. 2/Pooja Ghosh is the wife of the petitioner and was admitted to regular bail primarily on the ground of her being a lady; that Accused No.3/Prasanjit Mitra was the petitioner s lawyer at whose instance the sum of Rs. 88.05 lacs was recovered; and Accused No. 5/Deepesh Chamoli, who was

working as Manager at the Punjab National Bank, Sansad Marg Branch, was involved only in the last transaction of the fraud.

24. Learned APP has submitted that it was the petitioner who was responsible for orchestrating a very serious economic crime; and since 02 of the co-accused persons are still evading the police, it is highly likely that the petitioner may tamper with evidence and/or flee from justice, if admitted to regular bail.

25. In the circumstances, Mr. Srivastva has argued that the petitioner should not be admitted to regular bail.

26. Mr. Satish Aggarwala, learned senior standing counsel appearing on behalf of the complainant/Customs Department has adopted the submissions made on behalf of the State; only to add that the petitioner should not be released on regular bail since investigation in the matter is at a preliminary stage and a substantial amount of the defrauded money is yet to be recovered.

This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/06/2025 at 16:51:33
ANALYSIS AND CONCLUSION

27. Upon a conspectus of the facts and circumstances obtaining in the matter, the following factors weigh with this court at this stage :

> 27.1. Though as per the allegations in the chargesheet, the prosecution case is that the petitioner was the main conspirator who defrauded the Customs Department to the tune of about Rs. 10 crores by forging a scroll and a cheque issued by the department and by thereafter siphoning-off the money through various bank accounts, the present position is that the sum traced to the petitioner s bank accounts is about Rs. 6.33 crores and those bank accounts already stand frozen; 27.2. Investigation qua the petitioner is complete; chargesheet dated 12.01.2024 has been filed against him, in which the prosecution has cited 49 witnesses; but charges have not yet been framed and trial is yet to begin. However, in the meantime, the petitioner has suffered judicial custody for about 01 year and 06 months;
>
> 27.3. A perusal of the arrest memo issued to the petitioner shows, that no grounds of arrest were served upon the petitioner in writing; and the arrest memo merely recorded the reasons for arrest, namely the formal and non-specific rationale as to why the petitioner s arrest is required. This is a clear breach of the mandate of the Supreme Court in Prabir Purkayastha; 27.4. Four of the co-accused persons, to whom varying roles have been ascribed in the chargesheet, have already been admitted to regular bail. Insofar as the petitioner is concerned, other than This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/06/2025 at 16:51:33 the amount of about Rs. 6.33 crores which was traced to the petitioner s bank accounts, no other incriminating material showing forgery of the documents relating to the Customs Department has been recovered from the petitioner; 27.5. Furthermore, CFSL Report dated 30.01.2024 filed with the supplementary chargesheet does not contain any finding as to the petitioner s involvement in the offence of forgery; 27.6. The petitioner s nominal roll shows that his jail conduct has been „satisfactory and that he has had no other criminal implications; and furthermore, the petitioner s medical status report confirms that he suffers from various ailments, which have required him to be treated repeatedly in the jail medical facilities as well as at the DDU Hospital and Safdarjung Hospital for higher level of medical care;

27.7. The nature of the offences alleged are such, that the evidence in the matter is essentially documentary, which evidence has already been collected by the Investigating Officer; and as a result, there is little apprehension that the petitioner would be able to tamper with that evidence; and 27.8. Lastly, it is now the settled position of law, that unless there are compelling reasons to do so, an accused cannot be kept in judicial custody endlessly only because he is facing trial. In the opinion of this court, there is no basis to entertaining any serious, demonstrable apprehension that the petitioner would interfere with the course of justice by fleeing from trial; or by intimidating witnesses; or by tampering with evidence. Since This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/06/2025 at 16:51:33 bail cannot be denied as a punitive measure; nor can it be denied as a mark of disapproval for alleged unlawful conduct; nor for giving to an undertrial a "taste of imprisonment as a lesson"3, this court is unable to discern any compelling reason to keep the petitioner in judicial custody any longer. As a matter of fact, co-accused Amit Agrawal has since been admitted to regular bail by this Bench vide judgment dated 01.05.2025 passed in Bail Appln. No. 4475/2024 titled „Amit Agrawal versus State of NCT Delhi & Ors. , which judgment carries a more detailed discussion on the foregoing aspects.

28. As a sequitur to the above, this court is persuaded to admit the petitioner - Jayanta Ghosh s/o Arun Ghosh - to regular bail, pending trial, subject to the following conditions :

> 28.1. The petitioner shall furnish a personal bond in the sum of Rs.10,00,000/- (Rupees Ten Lacs Only) with 02 sureties in the like amount from family members, subject to the satisfaction of the learned trial court;
>
> 28.2. The petitioner shall furnish to the Investigating Officer a cell-

phone number on which the petitioner may be contacted at any time and shall ensure that the number is kept active and switched-on at all times;

28.3. If the petitioner has a passport, he shall surrender the same to the learned trial court and shall not travel out of the country without prior permission of the learned trial court;

Sanjay Chandra vs. CBI, (2012) 1 SCC 40, para 23 This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/06/2025 at 16:51:33
28.4. The petitioner shall not contact, nor visit, nor offer any inducement, threat or promise to any of the prosecution witnesses or other persons acquainted with the facts of case. The petitioner shall not tamper with evidence nor otherwise indulge in any act or omission that is unlawful or that would prejudice the proceedings in the pending trial; 28.5. In case of any change in his residential address/contact details, the petitioner shall promptly inform the Investigating Officer in writing; and 28.6. In addition to the foregoing conditions, the petitioner shall not open or close any bank account nor open or close any company or other business entity, without giving to the Investigating Officer a 30 days prior written notice; and would furnish to the Investigating Officer the full particulars of any such action that he may take.

29. Nothing in this order shall be construed as an expression of opinion on the merits of the pending matter.

30. A copy of this order be sent to the concerned Jail Superintendent forthwith.

31. The petition stands disposed-of.

32. Other pending applications, if any, are also disposed-of.

ANUP JAIRAM BHAMBHANI, J MAY 02, 2025 V.Rawat This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/06/2025 at 16:51:33